

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT
v.
THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

CERTIFICATION OF JUAN M. BARRAGAN

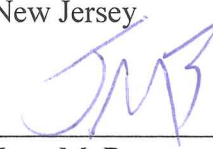
I, Juan M. Barragan, of full age, hereby certify:

1. I am an attorney-at-law and responsible for handling this matter on behalf of Respondent, The Port Authority of New York and New Jersey (the "Port Authority"). I am fully familiar with the circumstances set forth herein based upon my review of the file maintained by my office.

2. Attached hereto as Exhibit A is a true and correct copy of the Port Authority's November 13, 2017 responses to PETW's claimed deficiencies to its first set of interrogatories.

I certify that the foregoing statements are true. I am aware that if any of the foregoing statements are willfully false, I am subject to punishment.

PORT AUTHORITY LAW DEPARTMENT
Attorneys for The Port Authority of New York
and New Jersey

By: 

Juan M. Barragan

Dated: November 27, 2017

EXHIBIT A

THE PORT AUTHORITY OF NY & NJ

Law Department

4 World Trade Center
150 Greenwich Street
New York, NY 10007

November 13, 2017

Via FedEx Express

Donald F. Burke, Esq.
Law Office of Donald F. Burke
45 Gale Road
Brick, NJ 08723

Re: Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority
Docket No.: 17-07
Our Matter No.: 201711889

Dear Mr. Burke,

I am in receipt of your November 6, 2017 discovery deficiency letter. Enclosed are the Port Authority's responses to the deficiencies you indicate are present in the Port Authority's answers to PETW's first set of interrogatories.

1. Interrogatory 1. Set forth the date(s) upon which you answered these Interrogatories.

- *Port Authority's response:* On October 31, 2017 and November 1, 2017.
- *PETW's claimed deficiency:* None.
- *Port Authority's response to PETW's claimed deficiency:* No additional response needed.

2. Interrogatory 2. State the identity, address and age of the person(s) answering these Interrogatories.

- *Port Authority's response:*

Michael Bozza
Manager, Business Administration, Newark
Property Development & Management
Newark Liberty International Airport
Building 1 - Conrad Road
Newark, New Jersey 07114

- *PETW's claimed deficiency:* None.
- *Port Authority's response to PETW's claimed deficiency:* No additional response needed.

3. Interrogatory 3. If information used in answering these Interrogatories was gathered from any document or confirmed through any document, and the document has not otherwise been produced in response to a specific request in the following Interrogatories, identify each document and annex a copy hereto. For each document produced, set forth the numbers of the Interrogatories with respect to which it was consulted or used.
 - *Port Authority's response:* All non-privileged documents that were used in answering these interrogatories have been produced in response to PETW's first request for production of documents.
 - *PETW's claimed deficiency:* Unresponsive. Please identify all privileged documents in a privilege log.
 - *Port Authority's response to PETW's claimed deficiency:* In response to PETW's claimed deficiency, see the privilege log and additional documents being produced in response to the deficiencies PETW claims are present in the *Port Authority's responses* to PETW's first request for production of documents. Same are bates No. PA003099-PA004500.
4. Interrogatory 4. Identify each person who provided information used to prepare answers to these Interrogatories. For each such person identified, set forth the numbers of each Interrogatory with respect to which he provided any information.
 - *Port Authority's response:* The Port Authority objects to this interrogatory on the basis that the information sought may be protected from disclosure under the attorney-client privilege. Without waiving this objection, see answer to interrogatory #2.
 - *PETW's claimed deficiency:* Unresponsive. Please identify each person who provided information used to prepare answers to these Interrogatories and the numbers of each Interrogatory with respect to which he provided any information.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, Michael Bozza provided answers to these interrogatories with the assistance of counsel.
5. Interrogatory 5. Identify each person, other than counsel, who was consulted or contacted regarding answering these Interrogatories. Include in your answer the time and place at which they were contacted and the exact substance which that person contributed to these answers to Interrogatories.
 - *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought may be protected from disclosure under the

attorney-client privilege. Without waiving this objection, see answer to interrogatory #2.

- *PETW's claimed deficiency:* Unresponsive. Please identify each person who was consulted or contacted regarding answering these Interrogatories, the time and place at which they were contacted and the exact substance which that person contributed to these answers to Interrogatories.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, no one other than counsel was consulted.
6. Interrogatory 6. Identify all individuals who have knowledge of any facts concerning any allegations as set forth in the Verified Complaint (these allegations may hereinafter be referred to as the ("Subject Matter")) and as to each individual, state the substance of the individual's knowledge, and how you became aware that they possessed such knowledge and state whether you have in your possession a writing or recorded statement or notes or memorandum of any communication from or with said individual and, if so, attach a copy of all such statements and notes or memoranda.
- *Port Authority's response:* The Port Authority objects to this interrogatory on the basis that the information sought may be protected from disclosure under the attorney-client privilege. Upon information and belief the following individuals may have knowledge of any facts relevant to this action:

Current Port Authority employees:

Andrew Saporito
Deputy Director, Ports
4 World Trade Center
150 Greenwich Street, 17th Floor
New York, New York 10007

Ann Marie Clancy
Senior Property Representative, Newark
Property Development & Management
Newark Liberty International Airport
3 Brewster Road
Newark, New Jersey 07114

Michael Bozza
Manager, Business Administration, Newark
Property Development & Management
Newark Liberty International Airport

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3 Brewster Road
Newark, New Jersey 07114

Nick Detaranto
Manager, Credit Collections & Accounts Receivable, Treasury
4 World Trade Center
150 Greenwich Street, 19th Floor
New York, New York 10007

Raina Cinquemani
Staff Property Representative
4 World Trade Center
150 Greenwich Street, 17th Floor
New York, New York 10007

Chia Jen Huang
Assistant Manager, Port Leasing & Property Development
4 World Trade Center
150 Greenwich Street, 17th Floor
New York, New York 10007

Sam Ruda
Assistant Director, Ports
4 World Trade Center
150 Greenwich Street, 17th Floor
New York, New York 10007

Former Port Authority employees:

Dennis Lombardi (retired)
31 Van Mater Terrace
Hazlet, New Jersey 07730

Richard Larrabee (retired)
39 Violet Court
Holmdel, New Jersey 07733

James Robert (retired)
85 Leona Drive
Pittsfield, Massachusetts 01201

Wayne Rakoski (retired)
6 Crowfield Lane
Holmdel, New Jersey 07733

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Robert Evans (retired)
1885 Lake Ave.
Scotch Plains, New Jersey 07076

Jason Kirin
46 Charles Street
Metuchen, New Jersey 08840

Desiree Reiner
1114 27 Street
North Bergen, New Jersey 07047

Current and former PETW employees:

Patrick J. Wynne

Michael Wynne

Michael Morrow

All non-privileged documents from any of the above individuals have been produced in response to PETW's first request for production of documents.

- *PETW's claimed deficiency:* Unresponsive. Please state the substance of the individual's knowledge, and how you became aware that they possessed such knowledge and state whether you have in your possession a writing or recorded statement or notes or memorandum of any communication from or with said individual and, if so, attach a copy of all such statements and notes or memoranda. Provide a privilege log regarding withheld information of documents.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, the general substance of each of the individual's knowledge is noted in the answer to interrogatory #6; all relevant and non-privileged documents were attached to the Port Authority's responses to PETW's first request for production of documents; knowledge that the individuals mentioned in the answer to interrogatory #6 have knowledge of this matter came from the knowledge and experience gained while working with the Ports Department. In addition, the Port Authority amends the answer to this interrogatory to include the following individual, who may have knowledge of facts relevant to this action:

Catherine Bergamini
Business Manager, Port Director's Office/Business Services
4 World Trade Center

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150 Greenwich Street, 19th Floor
New York, New York 10007

7. Interrogatory 7. Describe the negotiations that resulted in the leases identified in PET&W 2 to PET&W 4 including but not limited to the persons involved in the negotiations for each agreement; a description of the communications exchanged during the negotiation for each agreement (identifying and producing all written communications); and the authorization/ratification process regarding entering into each agreement.
- *Port Authority's response:* The Port Authority objects to this interrogatory to the extent that it is vague and overly broad. The Port Authority also objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority further objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming. Without waiving these objections, communications between the Port Authority and PETW that relate to the agreements identified in PET&W 2 to PET&W 4 are contained in the Ports file and the PETW file, both of which are annexed to the *Port Authority's response* to PETW's first request for production of documents. Copies of the actual lease agreements between the Port Authority and Port Newark Container Terminal ("PNCT") and the Port Authority and PETW are contained in the Leases Agreements file, which is annexed to the Port Authority's response to PETW's first request for production of documents.
 - *PETW's claimed deficiency:* Unresponsive. A primary issue in this case pertains to the negotiations that resulted in the leases identified in PET&W 2 to PET&W 4. Please describe the negotiations that resulted in the leases identified in PET&W 2 to PET&W 4; the persons involved in the negotiations; a description of the communications exchanged during the negotiation for each agreement (identifying and producing all written communications); and describe the authorization/ratification process regarding entering into each agreement.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, pursuant to 46 CFR § 502.145(d)(1), communications and persons involved in the negotiation of the leases with PNCT are contained in the documents bates No. PA001201-PA003098 and PA003099-PA003639. Communications regarding the negotiation of the lease with PETW are contained in documents bates No. PA000982-PA001200 and PA003640-PA004343.
8. Interrogatory 8. Describe the negotiations that resulted in the leases entered into with Port Newark Container Terminal ("PNCT") and its predecessor entities from 1975 to present including but not limited to the persons involved in the negotiations for each agreement; a description of the communications exchanged during the negotiation for each agreement

(identifying and producing all written communications); and the authorization/ratification process regarding entering into each agreement.

- *Port Authority's response:* See answer to interrogatory #7.
 - *PETW's claimed deficiency:* A primary issue in this case pertains to the negotiations that resulted in the leases between PANYNJ and PNCT because PNCT was provided with property leased to PET&W without providing PET&W an opportunity to negotiate for such property, which is a clear preference to PNCT. Accordingly, describe the negotiations that resulted in the leases between PANYNJ and PNCT; including the persons involved in the negotiations; a description of the communications exchanged during the negotiation for each agreement (identifying and producing all written communications); and describe the authorization/ratification process regarding entering into each agreement. See deficiency to Answer #7.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, pursuant to 46 CFR § 502.145(d)(1), records responsive to this interrogatory are contained in the documents bates No. PA001201-PA003098 and PA003099-PA003639.
9. Interrogatory 9. Describe the negotiations that resulted in the agreement L PN-264 entered into between PANYNJ and PNCT including but not limited to the persons involved in the negotiations for each agreement; a description of the communications exchanged during the negotiation for each agreement (identifying and producing all written communications); and the authorization/ratification process regarding entering into each agreement.
- *Port Authority's response:* See answer to interrogatory #7.
 - *PETW's claimed deficiency:* A primary issue in this case pertains to the negotiations that resulted in the leases between PANYNJ and PNCT, including L PN-264, because PNCT was provided with property leased to PET&W without providing PET&W an opportunity to negotiate for such property, which is a clear preference to PNCT. Accordingly, describe the negotiations that resulted in the leases between PANYNJ and PNCT regarding L PN-264; including the persons involved in the negotiations; a description of the communications exchanged during the negotiation for each agreement (identifying and producing all written communications); and describe the authorization/ratification process regarding entering into each agreement. See deficiency to Answer #7.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, pursuant to 46 CFR § 502.145(d)(1), records responsive

to this interrogatory are contained in the documents bates No. PA001201-PA003098 and PA003099-PA003639.

10. Interrogatory 10. Identify, describe and provide the conceptual plans for PNCT's development of the Marine Container Terminal Facility, including the Existing Terminal Facility and the Added Parcels, together with an estimated timeline for phased completion of all of Lessee's Construction Work and set forth the date on which the conceptual plans were received by PANYNJ; identify who reviewed the conceptual plans on behalf of PANYNJ; identify who approved the conceptual plans on behalf of PANYNJ; and provide all records and communications regarding the receipt, review; and approval of the conceptual plans identified above.

- *Port Authority's response:* See answer to interrogatory #7.
 - *PETW's claimed deficiency:* Unresponsive. The conceptual plans for PNCT's development of the Marine Container Terminal Facility, including the Existing Terminal Facility and the Added Parcels, together with an estimated timeline for phased completion of all of Lessee's Construction Work are primary issues in this case and when PANYNJ knew or should have known of such plans. This goes to the preference to PNCT and detriment to PET&W by the PANYNJ. Accordingly, please identify, describe and provide conceptual plans for PNCT's development of the Marine Container Terminal Facility, including the Existing Terminal Facility and the Added Parcels, together with an estimated timeline for phased completion of all of Lessee's Construction Work and:
 - a. Set forth the date on which the conceptual plans were received by PANYNJ;
 - b. identify who reviewed the conceptual plans on behalf of PANYNJ;
 - c. identify who approved the conceptual plans on behalf of PANYNJ; and
 - d. provide all records and communications regarding the receipt, review; and approval of the conceptual plans identified above.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, pursuant to 46 CFR § 502.145(d)(1), records responsive to this interrogatory are contained in the documents bates no. PA001201-PA003098 and PA003099-PA003639.
11. Interrogatory 11. Did the PANYNJ agree to provide "Added Parcel" or "Added Parcels" as described in L-PN-264 to PNCT? If so, set forth the reasons why PANYNJ agreed to provide "Added Parcel" or "Added Parcels" as described in L-PN-264 to PNCT and identify all facts, documents and files?
- *Port Authority's response:* Please see the L-PN-264 lease, which speaks for itself, and is contained in the Ports file and in the Leases & Agreements file.

- *PETW's claimed deficiency:* Unresponsive. Please set forth the reasons why PANYNJ agreed to provide "Added Parcel" or "Added Parcels" to PNCT.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, the answer is yes. Pursuant to 46 CFR § 502.145(d)(1), the reasons for same can be found in the documents bates no. PA001201-PA003098 and PA003099-PA003639.

12. Interrogatory 12. Identify each tenant or other occupants of each "Added Parcel" or "Added Parcels" as described in leases between the PANYNJ and PNCT including L-PN-264.

- *Port Authority's response:* The Port Authority objects to this interrogatory to the extent that it is vague and overly broad. The Port Authority also objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. Without waiving these objections, excluding PETW, the tenants or other occupants of the properties referenced as added parcels include, but are not limited to:

Export Transport, Co.
International Motor Freight
Eastern Warehouse
Hudson Refrigeration
TRT International

- *PETW's claimed deficiency:* The objections are baseless and will be disregarded unless an appropriate protective order is obtained and with the inappropriate limitation "include, but are not limited to" which is directly contrary to PANYNJ's obligation to provide full and complete responses to discovery inquiries and requests.
- *Port Authority's response to PETW's claimed deficiency:* No additional response needed.

13. Interrogatory 13. State whether any tenant or other occupants of each "Added Parcel" or "Added Parcels" as described in leases between the PANYNJ and PNCT including L-PN-264 was given an opportunity to negotiate to remain in possession of the "Added Parcel."

- *Port Authority's response:* None of the tenants listed in the answer to interrogatory #12 were given an opportunity to negotiate to remain in possession of the property referenced as added parcels.
- *PETW's claimed deficiency:* None.

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- *Port Authority's response to PETW's claimed deficiency:* No additional response needed.
14. Interrogatory 14. For each tenant or other occupant of "Added Parcel" or "Added Parcels" as described in leases between the PANYNJ and PNCT including L-PN-264 who was given an opportunity to negotiate to remain in possession of the relevant "Added Parcel" or "Added Parcels" set forth the persons involved in the negotiations; the date or dates of the negotiations; a description of the communications exchanged during the negotiation for each agreement (identifying and producing all written communications); the results of the negotiations; and any authorization/ ratification process regarding any agreement reached as a result of the negotiations.
- *Port Authority's response:* N/A.
 - *PETW's claimed deficiency:* None.
 - *Port Authority's response to PETW's claimed deficiency:* No additional response needed.
15. Interrogatory 15. If PANYNJ did not provide any tenant or other occupant of "Added Parcel" or "Added Parcels" as described in leases between the PANYNJ and PNCT including L-PN-264 an opportunity to negotiate to remain in possession of the relevant "Added Parcel" set forth why.
- *Port Authority's response:* Although the tenants mentioned in the answer to interrogatory #12 were not allowed to remain in possession of the premises referenced as added parcels, the following tenants were relocated to alternate space:

International Motor Freight
Eastern Warehouse
TRT International
- Whereas the tenancies of Export Transport, Co. and Hudson Refrigeration were terminated or not renewed.
- *PETW's claimed deficiency:* Unresponsive. Please set forth the reasons why the PANYNJ did not provide any tenant or other occupant of "Added Parcel" or "Added Parcels" an opportunity to negotiate to remain in possession of the relevant "Added Parcel" and the property in question was provided to PNCT.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, tenants were not allowed to negotiate to remain in possession of the added parcels to allow PNCT and the Port Authority to develop and

re-develop that area, which would increase the throughput volume. Pursuant to 46 CFR § 502.145(d)(1), documents indicating the phases of the expansion and additional benefits of the development and redevelopment of the area are contained in the documents bates No. PA001201-PA003098 and PA003099-PA003639 and in the PNCT lease agreement, which is bates numbered PA000001-PA000276. Same discusses the phases and plans to develop and construct improvements, which included the development of a marine terminal container facility in the existing terminal facility and in the added parcels.

16. Interrogatory 16. Identify, describe and provide the agreements and communications between PANYNJ and each tenant or other occupants of each "Added Parcel" or "Added Parcels" as described in leases between the PANYNJ and PNCT including L-PN- 264 and describe the negotiations regarding surrender of the Added Parcel in order to allow the PANYNJ to transfer the Added Parcel to PNCT; identify all communications regarding the surrender of each Added Parcel in order to allow the PANYNJ to transfer the Added Parcel to PNCT; and describe and identify any agreement between each tenant or other occupants of each "Added Parcel" and the PANYNJ entered into contemporaneously or subsequent to each tenant or other occupants' agreement to the surrender each Added Parcel in order to allow the PANYNJ to transfer the Added Parcel to PNCT.

- *Port Authority's response:* The Port Authority objects to this interrogatory to the extent that it is vague and overly broad. The Port Authority also objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. Without waiving these objections, the communications and negotiations between the Port Authority and PETW are contained in the Ports file and PETW file; for the other tenants, please see answers to interrogatories #12, 13, and 15.
- *PETW's claimed deficiency:* Unresponsive. The interrogatory is not vague or overbroad. The interrogatory asks for the agreements and communications between PANYNJ and each tenant or other occupants of each "Added Parcel" or "Added Parcels" as described in leases between the PANYNJ and PNCT and a description of the negotiations regarding surrender of the Added Parcel in order to allow the PANYNJ to transfer the Added Parcel to PNCT. The response only referenced PET&W. The inquiry is directly related to the treatment of others as compared to the treatment of PET&W which is directly at issue in this case. Accordingly, please provide the information as to each tenant or other occupants of each "Added Parcel" or "Added Parcels" and identify all communications regarding the surrender of each Added Parcel in order to allow the PANYNJ to transfer the Added Parcel to PNCT; and describe and identify any agreement between each tenant or other occupants of each "Added Parcel" and the PANYNJ entered into contemporaneously or subsequent to each tenant or other occupants' agreement to the surrender each Added Parcel in order to allow the PANYNJ to transfer the Added Parcel to PNCT

- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and pursuant to 46 CFR § 502.145(d)(1), documents regarding communications and leases with International Motor Freight, Eastern Warehouse, TRT International, Export Transport, Co., and Hudson Refrigeration, are attached hereto as PA004501- PA005625.
17. Interrogatory 17. State whether any tenant or other occupants of each "Added Parcel" as described in L-PN-264 continues to do business in the Port of New York, whether tenant or other occupants of each "Added Parcel" has an existing agreement with the Port Authority and a description of the agreement and your understanding of the tenant or other occupants ongoing business and whether the ongoing business changed after PANYNJ agreed to transfer the "Added Parcel" or "Added Parcels" to PNCT.
- *Port Authority's response:* None known at this time.
 - *PETW's claimed deficiency:* Unresponsive. Prior answers indicated that International Motor Freight, Eastern Warehouse and TRT International were provided alternate space by the PANYNJ. As to each, set forth the existing agreement with the Port Authority and a description of the agreement and your understanding of the tenant or other occupants' ongoing business and whether the ongoing business changed after PANYNJ agreed to transfer the "Added Parcel" or "Added Parcels" to PNCT.
 - *Port Authority's response to PETW's claimed deficiency:* No additional response needed.
18. Interrogatory 18. Describe for each tenant or other occupants of each "Added Parcel" as described in leases between the PANYNJ and PNCT, including L-PN-264, the efforts the PANYNJ used to cause them to comply with the applicable provisions in their lease agreements with respect to vacation and surrender of the relevant Added Parcel free of all tenants or other occupants.
- *Port Authority's response:* The Port Authority objects to this interrogatory to the extent that it is vague and overly broad. The Port Authority also objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. Without waiving these objections, with regard to Export Transport, Co., see the May 10, 2011 notice of termination, which is contained in the Ports file and was exercised pursuant to section 2(b) of the lease agreement (LPN-280) between the Port Authority and Export Transport, Co. For PETW, see the April 19, 2016 notice of termination of the letting of buildings 201 and 202, which is contained in the Ports file and was exercised pursuant to section 41(a) of the lease agreement (LPN-297) between the Port Authority and PETW.
 - *PETW's claimed deficiency:* Unresponsive. The interrogatory is not vague or overbroad and the information sought is directly relevant to the issues in dispute in

this litigation regarding the treatment of PET&W as compared to others. Accordingly, set forth the efforts the PANYNJ used to cause the following to vacate space promised to PNCT:

International Motor Freight
Eastern Warehouse
TRT International
Export Transport, Co. and
Hudson Refrigeration.

- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory, the Port Authority served notices of termination upon the above tenants and PETW to cause them to comply with the applicable provisions in their lease agreements with respect to vacation and surrender of the relevant Added Parcels. The Port Authority filed suit against Export Transport and PETW after they failed to vacate the premises as provided in the applicable provisions of their lease agreements. Documents relevant to these two actions are contained in the Port Authority's Law Department file (bates No. PA000410-PA000981) and the documents pertaining to the tenants of the Other Parcels (bates No. PA004501-PA004818).
19. Interrogatory 19. Set forth whether each tenant or other occupants of each "Added Parcel" as described in leases between the PANYNJ and PNCT including L-PN-264 was advised that PANYNJ intended to transfer the Added Parcel to PNCT and identify, describe and provide the agreements and communications and identify each person involved.
- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. Without waiving this objection, documents containing this information, see answer to interrogatory #18 and the Ports file.
 - *PETW's claimed deficiency:* The information sought is not irrelevant but is directly relevant to the subject matter of this action in that PET&W contends that PANYNJ never advised it that PANYNJ intended to transfer the Added Parcel to PNCT and how other tenants were treated goes to PET&W's claim of unfair preference and prejudice. Accordingly, please set forth whether each tenant or other occupants of each "Added Parcel" as described in leases between the PANYNJ and PNCT including L-PN-264 was advised that PANYNJ intended to transfer the Added Parcel to PNCT and identify, describe and provide the agreements and communications and identify each person involved.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answers to this interrogatory and in response to PETW's claimed deficiency, the demands for possession did not advise the

tenants that the Port Authority intended to transfer the parcels to PNCT. However, as evidenced in the other documents that have been propounded, many, if not all, of the tenants were aware or were otherwise notified that the Port Authority intended to transfer the parcels to PNCT. Pursuant to 46 CFR § 502.145(d)(1), copies of the agreements and communications of the persons involved are contained in the documents bates No. PA004501-PA005625.

20. Interrogatory 20. Identify persons involved the efforts the PANYNJ used to cause them to comply with the applicable provisions in their lease agreements with respect to vacation and surrender of the relevant Added Parcel free of all tenants or other occupants of each of the "Added Parcels."

- *Port Authority's response:* See answer to interrogatories #18 and 19.
- *PETW's claimed deficiency:* Unresponsive See deficiencies to responses to interrogatories #18 and 19.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, pursuant to 46 CFR § 502.145(d)(1), the names of the persons involved in the efforts to cause the tenants to comply with the applicable provisions of their lease agreements are contained in the documents bates No. PA004501-PA005625.

21. Interrogatory 21. Describe all efforts, including legal actions, taken by PANYNJ to cause each tenant or occupant of any "Added Parcel" as described in leases between the PANYNJ and PNCT including L-PN-264 to vacate and surrender the relevant premises.

- *Port Authority's response:* See answer to interrogatories #18, 19, 20 and the Ports file.
- *PETW's claimed deficiency:* Unresponsive. See answer to interrogatories #18, 19, 20. Unknown what is meant by "Ports file."
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory, the Port Authority served notices of termination upon the above tenants and PETW to cause them to comply with the applicable provisions in their lease agreements. The Port Authority filed suit against Export Transport and PETW after they failed to vacate the premises. Documents relevant to these two actions are contained in the Port Authority's Law Department file (bates No. PA000410-PA000981) and the documents pertaining to the tenants of the Other Parcels (bates No. PA004501-PA004818).

22. Interrogatory 22. Set forth why PANYNJ did not provide alternate space to PET&W at Port Newark in order to continue its business operations.

- *Port Authority's response:* The Port Authority has not been able to provide alternate space to PETW because of the amounts in rents and other moneys PETW owes the Port Authority. As of October 31, 2017 the balance in PETW's account is \$3,201,865.86. Copies of PETW's statement of accounts, showing the amounts it owes to the Port Authority are contained in the Treasury file, which is annexed to the *Port Authority's responses* to PETW's first request for production of documents. In addition, many of the alternative spaces that PETW wants to relocate its operations to have been or are subject to requests for proposal ("RFP"). An RFP allows the Port Authority to award a contract/agreement to the proposer that the Port Authority believes is most qualified under the circumstances. The fact that the Port Authority had to draw down on PETW's letter of credit and that PETW owes the Port Authority \$3,201,865.86 as of October 31, 2017, negatively affects any proposal it submits.
 - *PETW's claimed deficiency:* This does not address the fact that PET&W has been seeking alternative space prior to the arrearages accumulating as set forth in the answer or that the PANYNJ is responsible for the increased operational costs resulting in PET&W self help or the fact that PET&W has been seeking to negotiate for alternate space at such time all issues between the party would be addressed. Please respond to the question as to why when the PANYNJ entered into the agreement with PNCT that took space leased to PET&W, on which they were engaging in Port related business, the PANYNJ did advise PET&W of its agreement with PNCT and work with PET&W to secure alternative adequate space so as PET&W could continue its business operations.
 - *Port Authority's response to PETW's claimed deficiency:* No additional response needed.
23. Interrogatory 23. Set forth when and under what circumstances PANYNJ obtained operation and control of the Site and Leased Premises (Port Newark) and identify each document and each person with knowledge of these facts.

- *Port Authority's response:* On November 1, 2009, the Port Authority and PETW entered into the Lease Agreement. Pursuant to the Lease Agreement, the Port Authority, as lessor, let to PETW, as lessee, certain buildings, structures, fixtures, improvements, and other property in Port Newark, which included Building 201 and Building 202 (the "Premises"). The Lease Agreement as to Buildings 201 and 202 of the Premises commenced on November 1, 2009 with a termination date of October 31, 2019, unless terminated sooner pursuant to the terms of the Lease Agreement.

Section 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights, provides, in relevant part, that "[i]n addition to all other rights under this [Lease] Agreement, as to the Building 173 Annex Premises, the Building 201 Premises, the Building 202 Premises, and the Open Area, both the Port Authority and

the Lessee [PETW] shall have the right to terminate the letting under the Agreement, without cause, effective at any time from and after October 31, 2015, on one (1) year's prior written notice to the other party." Section 41 of the Lease Agreement further provides that "[t]ermination under the provisions of this Section shall have the same effect as if the effective date of termination stated in the notice were the date of expiration of the Term."

On April 19, 2016, the Port Authority served upon PETW, a Notice of Termination pursuant to section 41(a) of the Lease Agreement (the "Notice of Termination"), whereby the Port Authority exercised its rights to terminate the letting of Buildings 201 and 202 of the Premises effective May 1, 2017, with the last day of beneficial occupancy being April 30, 2017. (Pa 157- 58). By email dated April 20, 2016, PETW acknowledged receipt of the Notice of Termination.

Therefore, pursuant to section 41(a) of the Lease Agreement and the Notice of Termination, the term of the Lease Agreement as to Buildings 201 and 202 of the Premises expired on May 1, 2017.

Despite having over one year's written notice, PETW did not vacate either Buildings 201 or 202 of the Premises. On May 4, 2017, the Port Authority commenced a landlord/tenant action for a judgment of possession. On July 26, 2017 the parties appeared for the bench trial of the landlord/tenant eviction action. After both sides rested, the trial court found that as a matter of law, the Port Authority was entitled to a judgment of possession because the testimony and evidence presented showed that the Port Authority complied with section 41(a) of the Lease Agreement by providing PETW with one year's advance written notice that it was terminating the letting of Buildings 201 and 202 of the Premises.

Even after obtaining the judgment of possession, PETW did not vacate the premises. As a result, the Port Authority was forced to obtain a warrant of removal to have PETW vacate the Premises.

The names of persons with knowledge and documents pertaining to the landlord/tenant action are contained in the Law Department file, which is annexed to the *Port Authority's response* to PETW's first request for production of documents.

- *PETW's claimed deficiency*: Unresponsive. The interrogatory asked for the circumstances PANYNJ obtained operation and control of the Site and Leased Premises meaning Port Newark and identify each document and each person with knowledge of these facts.
- *Port Authority's response to PETW's claimed deficiency*: No additional response needed.

24. Interrogatory 24. Identify each statement or communication, written or oral, made at any time relating to the negotiation of Lease No. L-PN-264 and identify each person participating or witnessing each such statement or communication; identify each document relating to each such statement or communication and, if such statement or communication was oral, provide a summary thereof.

- *Port Authority's response:* See answer to interrogatory #7.
- *PETW's claimed deficiency:* See deficiency regarding answer to interrogatory #7. Further, this is unresponsive. A primary issue in this case pertains to the negotiation of Lease No. L-PN-264. Please describe the negotiations that resulted in the Lease No. L-PN-264; the persons involved in the negotiations; a description of the communications exchanged during the negotiation for each agreement (identifying and producing all written communications); and describe the authorization/ratification process regarding entering into each agreement.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, pursuant to 46 CFR § 502.145(d)(1), documents containing the written statements or communications relating to the negotiation of Lease No. L-PN-264 are contained in the documents bates No. PA001201-PA003098. Additional documents are contained in the documents bates No.: PA003099-PA003639.

25. Interrogatory 25. Describe all communications regarding the PANJNY's plans for the building or space at 1400 Aruba Street from 2010 to present and identify each person or entity involved and identify all documents and files related thereto.

- *Port Authority's response:* See answer to interrogatory #7.
- *PETW's claimed deficiency:* See deficiency regarding answer to interrogatory #7. Further, this is unresponsive. A primary issue in this case pertains to the PANJNY's plans for the building or space at 1400 Aruba Street from 2010 to present. Please describe the PANJNY's plans for the building or space at 1400 Aruba Street from 2010 to present; the persons involved in the negotiations; a description of the communications exchanged during the negotiation for each agreement (identifying and producing all written communications); and describe the authorization/ratification process regarding entering into each agreement.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, the premises at 1400 Aruba street is currently the subject of a request for proposal or RFP (RFP No. 46041), which has not yet been awarded. A copy of PETW's proposal is annexed to PETW's initial disclosures.

pursuant to 46 CFR § 502.145(d)(1), documents relating to RFP are bates No. PA004397-PA004426.

26. Interrogatory 26. Describe all communications regarding the leasing or occupying of building or space at 1400 Aruba Street from 2010 to present and identify each person or entity involved, parties expressing interest in leasing or occupying the building or space the communications and identify all documents and files related thereto.

- *Port Authority's response:* See answer to interrogatory #7.
- *PETW's claimed deficiency:* See deficiency regarding answer to interrogatory #7. Further, this is unresponsive. A primary issue in this case pertains to the leasing or occupying of building or space at 1400 Aruba Street from 2010 to present. Please describe the PANJNY's the leasing or occupying of building or space at 1400 Aruba Street from 2010 to present; the persons involved in the negotiations; a description of the communications exchanged during the negotiation for each agreement (identifying and producing all written communications); and describe the authorization/ratification process regarding entering into each agreement.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, the parties that submitted RFP's for the space at 1400 Aruba street are East Coast Warehouse, Dist. Corp., and the Judge Organization.

27. Interrogatory 27. Set forth repairs made to building at 1400 Aruba Street from 2010 to present and identify each person or entity involved, including but not limited to whether sprinklers were to be repaired, whether they have been repaired, providing all information related thereto and identifying all documents and files related thereto.

- *Port Authority's response:* See answer to interrogatory #7.
- *PETW's claimed deficiency:* See deficiency regarding answer to interrogatory #7. Further, this is unresponsive. A primary issue in this case pertains to the leasing or occupying of building or space at 1400 Aruba Street from 2010 to present and the alleged repairs which PANYNJ stated were necessary and required PET&W to vacate the premise. Accordingly, please describe the PANJNY's repairs made to building at 1400 Aruba Street from 2010 to present; including but not limited to whether sprinklers were to be repaired, whether they have been repaired, providing all information related thereto and identifying all documents and files related thereto.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, the sprinkler system at 1400 Aruba street has been repaired.

28. Interrogatory 28. State whether Port Elizabeth Terminal & Warehouse Corp. had occupied 1400 Aruba Street from approximately March 2010 until December 14, 2014 and whether PANYNJ requested Port Elizabeth Terminal & Warehouse Corp. to vacate the premises in order to allow for sprinkler repair and provide all information related thereto and identify all documents and files related thereto.

- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority also objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming. Without waiving these objections, see the *Port Authority's responses* #24, 25, 26, 40, and 41 to PETW's request for admissions dated October 2, 2017.
- *PETW's claimed deficiency:* Unresponsive. A primary issue in this case pertains to the PANYNJ's discrimination and prejudice to PET&W and this includes the treatment of PET&W as it pertains to 1400 Aruba Street. Accordingly, please set forth whether Port Elizabeth Terminal & Warehouse Corp. had occupied 1400 Aruba Street from approximately March 2010 until December 14, 2014 and whether PANYNJ requested Port Elizabeth Terminal & Warehouse Corp. to vacate the premises in order to allow for sprinkler repair and provide all information related thereto and identify all documents and files related thereto.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency upon information and belief, PETW subleased the premises located at 1400 Aruba street from PNCT sometime between 2010 and 2014. Upon information and belief, PETW, not the Port Authority, requested that PETW vacated these premises.

29. Interrogatory 29. Set forth plans PANYNJ has for space and buildings described as 265, 267 and 268 Export Street, when those plans were developed, identifying those plans and providing all information related thereto including identify all documents and files related thereto.

- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority also objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming.
- *PETW's claimed deficiency:* Unresponsive. This seeks relevant information. A primary issue in this case pertains to the PANYNJ's discrimination of PET&W and this includes availability of alternate space and the basis for PANYNJ's refusal to allow PET&W to negotiate regarding the available space. This includes buildings

described as 265, 267 and 268 Export Street. Accordingly, set forth plans PANYNJ has for space and buildings described as 265, 267 and 268 Export Street, when those plans were developed, identifying those plans and providing all information related thereto including identify all documents and files related thereto.

- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, buildings 265, 267 and 268 in Export Street are part of an ongoing RFP (RFP No. 47564). Documents relating to RFP No. 47564 are bates No. PA004427-PA004500.

30. Interrogatory 30. State whether Port Elizabeth Terminal & Warehouse Corp. sought to negotiate with PANYNJ regarding the leasing of buildings 265, 267 and 268 Export Street and describe the results of the negotiations, providing all information related thereto and identifying all documents and files related thereto.

- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority also objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming. Without waiving these objections, see the Ports file and the PETW file.
- *PETW's claimed deficiency:* Unresponsive. This seeks relevant information. A primary issue in this case pertains to the PANYNJ's discrimination of PET&W and failure to negotiate and this includes the PANYNJ's failure to negotiate regarding the available space in buildings described as 265, 267 and 268 Export Street. Accordingly, set forth whether Port Elizabeth Terminal & Warehouse Corp. sought to negotiate with PANYNJ regarding the leasing of buildings 265, 267 and 268 Export Street and describe the results of the negotiations, providing all information related thereto and identifying all documents and files related thereto.
- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, these buildings are part of an ongoing RFP, which will be awarded to the highest rated proposer.

31. Interrogatory 31. State whether PANYNJ's plans includes accommodating Port Elizabeth Terminal & Warehouse Corp.'s continued operations at Port Newark and identify all communications, including any planning documents, addressing this issue.

- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority also objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming.

- *PETW's claimed deficiency:* Unresponsive. This seeks relevant information. A primary issue in this case pertains to the PANYNJ's discrimination of PET&W and failure to negotiate and this includes the PANYNJ's failure to negotiate. Accordingly, state whether PANYNJ's plans includes accommodating Port Elizabeth Terminal & Warehouse Corp.'s continued operations at Port Newark and identify all communications, including any planning documents, addressing this issue.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, the Port Authority's plans with regard to accommodating PETW depend on PETW paying the rents and other moneys it owes the Port Authority. As of October 31, 2017 the balance in PETW's account is \$3,201,865.86. Copies of PETW's statement of accounts, showing the amounts it owes to the Port Authority are contained in the Treasury file. Any documents relating to the Port Authority's negotiations and dealings with PETW are contained in the PETW file and the additional PETW documents being produced and bates No. PA003640-PA004343.
32. Interrogatory 32. State whether Port Elizabeth Terminal & Warehouse Corp. submitted a proposal to PANYNJ and brought to the attention of PANYNJ the necessity of negotiating a deal over suitable alternative space and the impact of PANYNJ's failure to engage in good faith negotiations was having on its business Port Elizabeth Terminal & Warehouse Corp. and identify all persons involved, identify all communications with regard thereto and identify all pertinent documents and files.
- *Port Authority's response:* The Port Authority objects to this interrogatory to the extent that it assumes facts that have not been proven. The names of all persons involved and documents showing that the Port Authority did engage in good faith negotiations with PETW on many occasions are contained in the Ports file and the PETW file.
 - *PETW's claimed deficiency:* Unresponsive. This seeks relevant information. A primary issue in this case pertains to the PANYNJ's discrimination of PET&W and failure to negotiate and this includes the PANYNJ's failure to negotiate. Accordingly, state whether Port Elizabeth Terminal & Warehouse Corp. submitted a proposal to PANYNJ and brought to the attention of PANYNJ the necessity of negotiating a deal over suitable alternative space and the impact of PANYNJ's failure to engage in good faith negotiations and identify all persons involved, identify all communications with regard thereto and identify all pertinent documents and files.
 - *Port Authority's response to PETW's claimed deficiency:* No additional response needed.

33. Interrogatory 33. Set forth why, on March 27, 2017, PANYNJ sought information regarding Port Elizabeth Terminal & Warehouse Corp.'s customers and volumes, the persons involved what was done with the information and identify all communications with regard thereto and identify all pertinent documents and files.

- *Port Authority's response:* See answer to interrogatory #2.
- *PETW's claimed deficiency:* Interrogatory 2 requested the identity, address and age of the person(s) answering these Interrogatories and the response was:

Michael Bozza
Manager, Business Administration, Newark
Property Development & Management
Newark Liberty International Airport
Building 1 - Conrad Road
Newark, New Jersey 07114

The inquiry as to why, on March 27, 2017, PANYNJ sought information regarding Port Elizabeth Terminal & Warehouse Corp.'s customers and volumes, the persons involved what was done with the information and identify all communications with regard thereto and identify all pertinent documents and files goes to pretext and unfair treatment of PET&W by PANYNJ. Please provide a full and complete response.

- *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, information regarding the rail volumes was collected to assist the Port Authority's rail group with work they were performing concerning to rail volumes at the Port. In addition to Mike Bozza, Raina Cinquemani was involved in obtaining this information. Pursuant to 46 CFR § 502.145(d)(1), documents relating to the rail volume are contained in the documents bates No. PA001042-PA001053.
34. Interrogatory 34. Set forth whether PNCT, its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs. Orders, opinions, stipulations, settlement agreements and other such documents and records.
- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action.
 - *PETW's claimed deficiency:* Unresponsive. The inquiry as to whether PNCT, its parent or subsidiary entities ever filed a legal action against PANYNJ is designed to determine the basis for the preference PANYNJ has provided to PNCT and the

prejudice to PET&W. It also is designed to lead to relevant information. Accordingly, please set forth whether PNCT, its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs, Orders, opinions, stipulations, settlement agreements and other such documents and records.

- *Port Authority's response to PETW's claimed deficiency:* No additional response needed.

35. Interrogatory 35. Set forth whether Maher Terminals, its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs. Orders, opinions, stipulations, settlement agreements and other such documents and records.

- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority also objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming.
- *PETW's claimed deficiency:* Unresponsive. The inquiry as to whether MAHER, its parent or subsidiary entities ever filed a legal action against PANYNJ is designed to determine the basis for the preference PANYNJ has provided to MAHER and the prejudice to PET&W. It also is designed to lead to relevant information. Accordingly, please set forth whether MAHER, its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs, Orders, opinions, stipulations, settlement agreements and other such documents and records.
- *Port Authority's response to PETW's claimed deficiency:* No additional response needed.

36. Interrogatory 36. Set forth whether American Stevedoring, its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs. Orders, opinions, stipulations, settlement agreements and other such documents and records.

- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority also objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming.
 - *PETW's claimed deficiency:* Unresponsive. The inquiry as to whether American Stevedoring, its parent or subsidiary entities ever filed a legal action against PANYNJ is designed to determine the basis for the preference PANYNJ has provided to American Stevedoring and the prejudice to PET&W. It also is designed to lead to relevant information. Accordingly, please set forth whether American Stevedoring, its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs, Orders, opinions, stipulations, settlement agreements and other such documents and records.
 - *Port Authority's response to PETW's claimed deficiency:* No additional response needed.
37. Interrogatory 37. Set forth whether American Warehousing, its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs. Orders, opinions, stipulations, settlement agreements and other such documents and records.
- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority also objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming.
 - *PETW's claimed deficiency:* Unresponsive. The inquiry as to whether American Warehousing, its parent or subsidiary entities ever filed a legal action against PANYNJ is designed to determine the basis for the preference PANYNJ has provided to American Stevedoring and the prejudice to PET&W. It also is designed to lead to relevant information. Accordingly, please set forth whether American Warehousing, its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs, Orders, opinions, stipulations, settlement agreements and other such documents and records.

- *Port Authority's response to PETW's claimed deficiency:* No additional response needed.
38. Interrogatory 38. Set forth whether CARGO (North East Marine Terminal), its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs, Orders, opinions, stipulations, settlement agreements and other such documents and records.
- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority also objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming.
 - *PETW's claimed deficiency:* Unresponsive. The inquiry as to whether CARGO (North East Marine Terminal), its parent or subsidiary entities ever filed a legal action against PANYNJ is designed to determine the basis for the preference PANYNJ has provided to CARGO (North East Marine Terminal) and the prejudice to PET&W. It also is designed to lead to relevant information. Accordingly, please set forth whether CARGO (North East Marine Terminal), its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs, Orders, opinions, stipulations, settlement agreements and other such documents and records.
 - *Port Authority's response to PETW's claimed deficiency:* No additional response needed.
39. Interrogatory 39. Set forth whether Foreign Auto Preparation Services, its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs. Orders, opinions, stipulations, settlement agreements and other such documents and records.
- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority also objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming.
 - *PETW's claimed deficiency:* Unresponsive. The inquiry as to whether Foreign Auto Preparation Services, its parent or subsidiary entities ever filed a legal action against

PANYNJ is designed to determine the basis for the preference PANYNJ has provided to Foreign Auto Preparation Services and the prejudice to PET&W. It also is designed to lead to relevant information. Accordingly, please set forth whether Foreign Auto Preparation Services, its parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs, Orders, opinions, stipulations, settlement agreements and other such documents and records.

- *Port Authority's response to PETW's claimed deficiency:* No additional response needed.

40. Interrogatory 40. Identify each Marine Terminal Operator or entity claiming to be a Marine Terminal Operator who filed a legal action against PANYNJ in the last 20 years and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs. Orders, opinions, stipulations, settlement agreements and other such documents and records.

- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority also objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming.
- *PETW's claimed deficiency:* Unresponsive. The inquiry as to whether any Marine Terminal Operator or entity claiming to be a Marine Terminal Operator, its parent or subsidiary entities ever filed a legal action against PANYNJ is designed to determine the basis for the preference PANYNJ has provided to any Marine Terminal Operator or entity claiming to be a Marine Terminal Operator and the prejudice to PET&W. It also is designed to lead to relevant information. Accordingly, please set forth whether any Marine Terminal Operator or entity claiming to be a Marine Terminal Operator, or any parent or subsidiary entities ever filed a legal action against PANYNJ and describe the allegations, the parties' positions as to the allegations, the resolution of the action and identify and provide the pleadings, discovery exchanged including but not limited to documents exchanged, deposition transcripts, motions and supporting briefs, Orders, opinions, stipulations, settlement agreements and other such documents and records.
- *Port Authority's response to PETW's claimed deficiency:* No additional response needed.

41. Interrogatory 41. Describe each regulation and/or practice of the PANYNJ as they pertain to tenants who receive, handle, store, or deliver property in the Port of New York including

tenants who are Marine Terminal Operators as that term is used in the Shipping Act to include: rent arrearages; filing of eviction actions; engaging in negotiations regarding available space; and settling lawsuits brought by Marine Terminal Operators or those who contend to be Marine Terminal Operators.

- *Port Authority's response:* The Port Authority objects to this interrogatory to the extent that it is vague and overly broad. The Port Authority also objects to this interrogatory on the ground that the information sought is irrelevant to the subject matter of this action. The Port Authority further objects to this interrogatory on the basis that responding to same would be unduly burdensome, expensive and/or time consuming.
 - *PETW's claimed deficiency:* The interrogatory is not vague and overly broad nor is it irrelevant. This goes precisely to the Shipping Act claim asserted by PET&W. Accordingly, set forth each regulation and/or practice of the PANYNJ as they pertain to tenants who receive, handle, store, or deliver property in the Port of New York including tenants who are Marine Terminal Operators as that term is used in the Shipping Act to include: rent arrearages; filing of eviction actions; engaging in negotiations regarding available space; and settling lawsuits brought by Marine Terminal Operators or those who contend to be Marine Terminal Operators.
 - *Port Authority's response to PETW's claimed deficiency:* Without waiving any of the objections contained in the Port Authority's answer to this interrogatory and in response to PETW's claimed deficiency, pursuant to 46 CFR § 502.145(d)(1), see the Rules and Regulations Applying at Port Authority Marine Terminals and Rates and Charges Applicable for the Use of Public Areas at Port Authority Marine Terminals. Same is bates numbered PA004344-PA004396.
42. Interrogatory 42. If you claim that any party or non-party made any admissions or statements as to the subject matter of this lawsuit, state: the date made; (a) the name of the person by whom made; (b) the name of the person by whom made; (c) the name and address of each person present at the time the admission was made of the person to whom made; (d) where made; (e) the name and address of each person present at the time the admission was made; (f) the content of the admission; and (g) if in writing, attach a copy.
- *PETW's claimed deficiency:* No response provided.
 - *Port Authority's response to PETW's claimed deficiency:* The Port Authority answered this interrogatory, but it was not separately numbered. As a result, the answer to this interrogatory is contained under interrogatory #41. Without waiving any of the objections contained in the Port Authority's answer to this interrogatory, any admissions or statements made by any party or non-party concerning the subject matter of this action are contained in the documents produced by PETW and/or the Port Authority during the course of discovery. Such document may contain the name(s) of

the persons who made the statement, the name(s) of the persons to whom the statement was made, the address of these persons, and the contents of the statement or admission.

43. Interrogatory 43. If you or any of your representatives have had any oral communication concerning the subject matter of this lawsuit or contend that PET&W or its representative did state: the date of the communication; the name and address of each participant; the name and address of each person present at the time of such communication; where such communication took place; and a summary of what was said by each party participating in the communication.

- *Port Authority's response:* See answer to interrogatory #43.
- *PETW's claimed deficiency:* This response is a blatant obfuscation in violation of the rules and sanctionable. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Representatives of the Port Authority and PETW had numerous oral communications concerning issues relevant to this action. The subject matter of the discussions, including the time and place of the meetings and telephone conversations, are contained in the documents produced by the Port Authority and/or PETW during the course of discovery.

44. Interrogatory 44. List below any statements (verbal and/ or written) made by any party to this action pertinent to the issues in dispute. As to each such statement, state by whom made, to who made and in whose presence. If any such statement was in writing, identify the writing and attach a copy of it hereto.

- *Port Authority's response:* See answer to interrogatory #43.
- *PETW's claimed deficiency:* This response is a blatant obfuscation in violation of the rules and sanctionable. Please provide a full and complete response.
- *Port Authority's response to PETW's claimed deficiency:* Any and all written statements made by any party relating to the issues in dispute in this action are contained in the documents produced by Port Authority and/or PETW during the course of discovery. As to verbal statements, please see the transcript of the testimony that Michael Bozza provided during the trial of the landlord/tenant action. Same is contained in the Law Department file, bates No. PA000410-PA000981.

45. Interrogatory 45. Set forth the names and addresses of all persons with knowledge relevant to any issue in this lawsuit and as to each set forth your understanding of the facts known by each named witness.

- *Port Authority's response:* See answer to interrogatory #6.

- *PETW's claimed deficiency:* See deficiency regarding #6. Unresponsive. Please state the substance of the individual's knowledge, and how you became aware that they possessed such knowledge and state whether you have in your possession a writing or recorded statement or notes or memorandum of any communication from or with said individual and, if so, attach a copy of all such statements and notes or memoranda. Provide a privilege log regarding withheld information of documents.
 - *Port Authority's response to PETW's claimed deficiency:* In response to PETW's claimed deficiency, see Port Authority's response to PETW's claimed deficiency to interrogatory #6 as well as the Port Authority's answer to interrogatory #6.
46. Interrogatory 46. Describe in detail all laws (or acts using the force and effect of the law); codes, regulations and legal principles, standards or customs that Defendant contends are applicable to this action.
- *Port Authority's response:* The Port Authority objects to this interrogatory on the ground that the information sought may be protected from disclosure under the attorney-client privilege. Without waiving this objection, see the affirmative defenses the Port Authority interposed in its verified answer to PETW's verified complaint. In addition, one or more sections of the Shipping Act may be applicable in this action.
 - *PETW's claimed deficiency:* This is directly relevant. Asserting a claim of attorney client privilege is frivolous. Please set forth the factual basis for each Affirmative Defense raised in this matter and identify the sections of the Shipping Act may the PANYNJ contends may be applicable in this action.
 - *Port Authority's response to PETW's claimed deficiency:* In response to PETW's claimed deficiency, one or more of the affirmative/additional defenses asserted in the Port Authority's verified answer to PETW's verified complaint may be applicable. In addition, the principles of contract law, including breaches of contract, may be applicable to this action. Moreover, one or more sections of the Shipping Act may be applicable in this action.
47. Interrogatory 47. Set forth whether you have obtained a statement or admission from any person, firm or corporation, party or their agents, servants, representatives or employees, relating to the subject matter of this litigation. If yes, state: the name and current address of the person who gave the statement or made the admission the date the statement or admission was made and the name and addresses of the person or persons to whom the statement or admission was made; if written, whether signed by that person; if oral, the name and current address of the person who obtained the statement, and if recorded the nature and present custody of the recording; attach a copy of all written statements, and summarize the contents of all oral statements; and set forth names and addresses of all witnesses with knowledge of these facts, setting forth as precisely as possible what they know and identify and provide all documents pertinent to these facts.

- *Port Authority's response:* See answer to interrogatory #43.
 - *PETW's claimed deficiency:* This response is a blatant obfuscation in violation of the rules and sanctionable. Please provide a full and complete response as to whether you have obtained a statement or admission from any person, firm or corporation, party or their agents, servants, representatives or employees, relating to the subject matter of this litigation. If yes, state: the name and current address of the person who gave the statement or made the admission the date the statement or admission was made and the name and addresses of the person or persons to whom the statement or admission was made; if written, whether signed by that person; if oral, the name and current address of the person who obtained the statement, and if recorded the nature and present custody of the recording; attach a copy of all written statements, and summarize the contents of all oral statements; and set forth names and addresses of all witnesses with knowledge of these facts, setting forth as precisely as possible what they know and identify and provide all documents pertinent to these facts.
 - *Port Authority's response to PETW's claimed deficiency:* Please see the transcript of the testimony that Michael Bozza provided during the trial of the landlord/tenant action. Same is contained in the Law Department file, bates No. PA000410-PA000981. In addition, written statements may be contained in any of the documents that the Port Authority and/or PETW have produced during the course of discovery.
48. Interrogatory 48. If you or any one on your behalf, including experts, contend that any party to this litigation violated or failed to comply with any statute, rule, regulation, ordinance, standard of the industry or other standard of conduct, in a manner pertinent to the issue in dispute set forth the standard and the manner in which you contend any party violated or complied with the standard. Set forth names and addresses of all witnesses with knowledge of these facts, setting forth as precisely as possible what they know and identify and provide all documents pertinent to these facts.
- *Port Authority's response:* See answer to interrogatory #46.
 - *PETW's claimed deficiency:* This response is a blatant obfuscation in violation of the rules and sanctionable. If you or any one on your behalf, including experts, contend that any party to this litigation violated or complied with any statute, rule, regulation, ordinance, standard of the industry or other standard of conduct, in a manner pertinent to the issue in dispute set forth the standard and the manner in which you contend any party violated or complied with the standard. Set forth names and addresses of all witnesses with knowledge of these facts, setting forth as precisely as possible what they know and identify and provide all documents pertinent to these facts.
 - *Port Authority's response to PETW's claimed deficiency:* PETW breached one or more of the terms and conditions of LPN-297. PETW's breaches under LPN-297 include,

but are not limited to, failing to pay the rents and other moneys to the Port Authority and failing to vacate buildings 201 and 202 in a timely manner after the Port Authority served upon PETW the notice of termination on April 19, 2016, pursuant to section 41(a) of the lease agreement. In addition, the Port Authority may assert one or more of the affirmative/additional defenses that the Port Authority interposed in its verified answer. Please see answer to interrogatory #6 for the names and addresses of witnesses with knowledge of these facts. Any and all documents that are pertinent to these facts and relevant have been produced by the Port Authority and/or PETW during the course of discovery.

49. Interrogatory 49. If you intend to elicit opinion testimony from any witness who you do not contend is an expert, set forth the subject matter of the proposed opinion testimony and each and every fact upon which it is based.

- *Port Authority's response:* The witnesses may testify as to any subject matter that is relevant to or relates to this action.
- *PETW's claimed deficiency:* For each such witness, please set forth the subject matter of the proposed opinion testimony and each and every fact upon which it is based.
- *Port Authority's response to PETW's claimed deficiency:* No additional response needed.

50. Interrogatory 50. Identify all persons whom you expect to or may call at trial as expert witnesses or whom you have consulted regarding this litigation. As to such expert, state the date of his or her retention and the terms and conditions of his or her retention. As to each expert witness identified in the response to this interrogatory:

- a. Set forth the subject matter upon which the expert is expected to testify;
- b. Set forth the substance of the facts and opinion to which the expert is expected to testify and a summary of the grounds for each such opinion;
- c. Set forth the field of expertise of the expert;
- d. Set forth in detail the qualifications and training of the expert, including professional and practical experience, educational institutions attended and degrees obtained. As to each item listed in the answer to this interrogatory, set forth the relevant dates and the nature and identity of each institution attended and of each place at which experience and/or training was received;
- e. Identify any article or publication written by the expert pertaining in any way to his or her field of expertise or the subject matter of his or her anticipated testimony. As to each such article or publication, identify the publisher and set forth the date and location of publication;
- f. Identify and attach to your answers to these Interrogatories true copies of any and all written reports, conclusions or comments ever prepared by the expert witness including all drafts relating to the subject matter of this litigation.

- g. Identify any and all oral reports, conclusions or comments ever prepared by the expert with respect to the subject matter of this litigation and set forth the substance of all oral reports, the date(s) thereof, and annex to your answers to these Interrogatories a copy of each memorandum of each such oral report, if any;
 - h. Identify all documents, codes, standards, books, articles, reports and studies upon which the expert consulted, reviewed or used in reaching his opinions and conclusions relating to the subject matter of this litigation;
 - i. As to such expert, describe any prior business and/or social relationship that may have existed between said expert and the party answering these Interrogatories;
 - j. As to such expert, state whether that expert has rendered a report or opinion concerning the matter regardless of whether the report is in writing. As to such expert who gave an opinion or report, state the date of such opinion/report and summarize all such oral opinions and reports;
 - k. Describe with specificity all written correspondence between any expert and the party answering these Interrogatories or its agents and affix copies hereto;
 - l. As to each such expert, list all written material and tangible things furnished to him by the party answering this Interrogatory or its representatives;
 - m. Identify all standard, regulations or codes that each expert recognizes as applicable to the subject matter of his report;
 - n. As to each expert, state whether he/she has published any works, and if so, identify with particularity all published articles and works giving as to each the full title of same;
 - o. As to each expert, state the text, and/or works that he deems authoritative in the field of his expertise relating to the subject matter of this litigation;
 - p. Identify and attach hereto a copy of all drafts of written expert opinions including electronic decisions and identify the date each was prepared;
 - q. State the total amount of money paid to each expert and state whether any amount is currently due and owing;
 - r. State the date and time, which any such expert or consultant has visited the site which is the subject of this lawsuit, if any;
 - s. Identify all documents, maps, books, treatises, drawings, photographs, etc. which any above named expert has reviewed to render such opinion/report and the source of those items;
 - t. If you or your expert witnesses intend to rely upon or offer identify any text book, paper, authority or standard upon which you or your expert may rely upon or offer into evidence to establish or substantiate any opinions and conclusions upon which you may rely upon in your examination or cross- examination of any expert state: the exact title of each such text book, paper authority or standard; the name and address of the author of each; the name and address of the publisher of each; the date when each was published; attach to your answers to these interrogatories copies of the pertinent pages or provisions of each such textbook, paper, authority or standard.
- *Port Authority's response:* The Port Authority cannot answer this interrogatory as it has not retained any experts to date.

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- *PETW's claimed deficiency:* This requests information regarding each expert whom PANYNJ expects to or may call at trial as an expert witness or whom you have consulted regarding this litigation the response that PANYNJ has not "retained" any experts is unresponsive.
- *Port Authority's response to PETW's claimed deficiency:* In response to PETW's claimed deficiency, to date, the Port Authority has not consulted with any experts regarding this litigation.

Please advise on whether you require Mr. Bozza to sign these responses to the deficiencies you indicate are present in the Port Authority's answers to PETW's first set of interrogatories. If you have any questions, please do not hesitate to contact me.

Very truly yours,


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cc: Paul M. Donovan, Esq. (via FedEx Express)